



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Jenrryis Fiallo : ORDER
Tax Registry No. 958588 : OF
Brooklyn Court Section : DISMISSAL
-----X

Police Officer Jenrryis Fiallo, Tax Registry No. 958588, having been served with written notice, has been tried on written Charges and Specifications numbered C-031931 and C-031738, as set forth on form P.D. 468-121, dated May 17, 2022, and March 8, 2023, respectively, and after a review of the entire record, Respondent is found Guilty of the charged misconduct under Case No. C-031931.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Jenrryis Fiallo from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE:

10/10/25

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POLICE DEPARTMENT

October 3, 2025

-----X

In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	C-031738
Police Officer Jenrryis Fiallo	:	C-031931
Tax Registry No. 958588	:	
Brooklyn Court Section	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Matthew McCarthy, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Peter Brill, Esq.
Brill Legal Group, P.C.
176 Lexington Avenue, Suite O
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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. C-031931

1. Said Police Officer Jenrryis Fiallo, while on duty and assigned to Transit Division District 20, on or about December 3, 2020, wrongfully made one (1) query on a Department computer system and confidential database, which was unrelated to the official business of the Department, and divulged the information to an individual known to the Department.

A.G. 304-15

DEPARTMENT
CONFIDENTIALITY
POLICY

P.G. 219-14, Page 1, Paragraph 2

DEPARTMENT
COMPUTER SYSTEMS

2. Said Police Officer Jenrryis Fiallo, while assigned to Transit Division District 20, on or about and in between April 21, 2021 through November 23, 2021, did fail and neglect to reside within the City of New York or the counties of Westchester, Rockland, Orange, Putnam, Nassau or Suffolk, as required, to wit: said Police Officer Fiallo resided in New Jersey.

A.G. 304-25

RESIDENCE
REQUIREMENTS

3. Said Police Officer Jenrryis Fiallo, while on duty and assigned to Transit Division District 20, on or about May 3, 2022, wrongfully engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that during an official Department interview, said Police Officer Fiallo improperly made misleading statements regarding facts known to the Department.

A.G. 304-10, Page 1, Paragraph 2

FALSE OR MISLEADING
STATEMENTS

4. Said Police Officer Jenrryis Fiallo, while on duty and assigned to Transit Division District 20, on or about October 29, 2021, wrongfully made or caused inaccurate entries in Department records, to wit: said Police Officer Fiallo submitted a document that inaccurately represented that he had changed his residence to a new address in New York City when, in fact, he did not live there.

A.G. 304-05, Page 1, Paragraph 4

PERFORMANCE
ON DUTY

5. Said Police Officer Jenrryis Fiallo, while assigned to Transit Division District 20, on or about and between December 3, 2020 through January 4, 2022, did fail and neglect to make proper Activity Log entries on three (3) separate occasions.

P.G. 212-08

ACTIVITY LOGS

Disciplinary Case No. C-031738

1. Said Police Officer Jenrryis Fiallo, currently assigned to Brooklyn Court Section, on or about January 1, 2018 through February 10, 2023, in New York State and Dominican Republic, did wrongfully and without just cause engage in off-duty employment without authority or permission to do so.

A.G. 332-04

OFF-DUTY
EMPLOYMENT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 4, 2025.

Under Case No. C-031931, Respondent, through his counsel, entered a plea of Guilty to Specifications 1, 2, 4, and 5, and Not Guilty to Specification 3. Under Case No. C-031738, Respondent, through his counsel, entered a plea of Not Guilty. The Department called Lieutenant Myles McKenna as a witness. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of the following charges: computer misuse with dissemination of information, residing outside residence counties, misleading statements, inaccurate entries regarding residence, and Activity Log omissions. I also find Respondent Not Guilty of unauthorized off-duty employment. With respect to the guilty findings, I recommend a penalty of Termination.

ANALYSIS

The main accusations in this case stem from an unauthorized license plate check that Respondent admits to conducting on December 3, 2020. On that date, Respondent, while on duty, used his Department cell phone to run a search of a license plate number, while also opening several additional documents as part of that query. According to Respondent, the search was done at the request of a long-time friend, A.C. [REDACTED]. Respondent has pleaded guilty to Specification 1 under Case No. C-031931, conceding that the search was not related to official Department business, and that he divulged the results of the query to A.C. [REDACTED]. At an official Department interview conducted 17 months later, Respondent was questioned in detail about the computer search. Specification 3 alleges that he provided misleading answers in response to those questions. These two specifications will be considered first, before turning to several additional, unrelated charges.

Computer search and misleading statements

In order to assess these two charges, it is important to consider the context in which Respondent conducted the license plate search. Lieutenant Myles McKenna of IAB provided relevant background information, based on his review of reports prepared by members of a joint strike force that included NYPD officers, a Bergen County Detective and federal agents with the Drug Enforcement Administration (“DEA”). On December 3, 2020, members of the strike force conducted a vehicle stop, whose occupants were being watched in connection with suspected narcotics activity. Although the two occupants of the car were not taken into custody, approximately \$200,000 was seized from their vehicle. (Tr. 47-48, 99)

As part of the strike force’s investigation, they were conducting a wiretap on the phone of an individual (“the target”), who was the main target of the narcotics investigation. Lieutenant

McKenna testified that at 1802 hours on December 3, immediately after the car stop, a call was made to the target by one of the vehicle's occupants informing the target that the money had been seized. The caller also stated that they were able to take a photograph of the license plate of one of the vehicles involved in conducting the stop. The target stated that he would reach out to an intermediary, who knew an NYPD officer who could run a check on the plate. Less than one hour later, there was a follow-up call in which the unnamed intermediary stated that the preliminary check did not yield results, and they needed more time to obtain a name and address associated with the plate. Minutes later, there was another call in which the intermediary stated that as per the NYPD contact, the license plate came back to a DEA car. After this call, the target's phone line went down, and no additional information could be gathered from the wiretap. (Tr. 48-54, 74)

The detective from Bergen County contacted the NYPD's Command Center regarding what had transpired, and IAB conducted a DAS audit to determine which MOS had conducted the license plate search on December 3. Lieutenant McKenna testified that the audit indicated Respondent was the only MOS to perform such a search. Specifically, Respondent began his query at 1839 hours and concluded it at 1846. (*See* Dept. Ex. 3) The audit revealed that after first entering the plate number, Respondent opened several separate tabs that revealed summonses issued, a police accident report from February 2020, NYSPIN data, and license plate reader records. From the accident report, Respondent learned the name of the registered owner of the vehicle to which the plate was attached, and then conducted two separate searches of the owner's name. According to Lieutenant McKenna, a number of the documents viewed by Respondent may have contained the New York City address associated with the registered owner, 99 10th Avenue, which is a DEA headquarters. However, the lieutenant was unable to say for certain

whether any particular report contained that address at the moment Respondent viewed them since information may be added or subtracted from such reports over time. The registered owner turned out to be a DEA agent who was assigned to that vehicle. (Tr. 47, 54-58, 70, 75-76, 83-95, 103-05)

Respondent testified that on December 3, 2020, he was contacted by his friend, A.C. [REDACTED], who asked him to search a license plate to see if it was clean and to find out under what name it was registered. A.C. [REDACTED] purchased cars at auction and then resold them, and Respondent assumed that was the purpose of the plate check. Respondent could not recall whether he and A.C. [REDACTED] communicated by phone call or text that day, or through some other means such as WhatsApp, Instagram, or FaceTime. Respondent admitted that he used his Department cell phone to conduct the search, during which he viewed several documents, including a summons and a police accident report from February 2020, from which he learned the name of the registered owner of the vehicle. After he learned the name, he did two additional computer searches of the owner. Respondent conceded that as he was viewing these documents, he promptly relayed the information to A.C. [REDACTED]. According to Respondent, that information included the name of the car owner, but “nothing much after that.” (Tr. 123-29, 149-61, 165)

Specification 1 under Case No. C-031931 charges Respondent with wrongfully using his Department phone to conduct a computer search which was unrelated to the official business of the Department, and then divulging that information to an outside individual. As noted above, Respondent has pleaded guilty to that charge, admitting that he did conduct such a search on December 3, 2020, and then shared the information with a third party. Accordingly, I find Respondent Guilty of Specification 1.

Specification 3 charges Respondent with making misleading statements during his official Department interview on May 3, 2022. A recording of that interview, which was broken into two parts, and the accompanying transcripts, were admitted into evidence. (Dept. Exs. 1 & 1A, 2 & 2A) The Department Advocate provided a Bill of Particulars listing the specific statements at issue. Respondent has contested that charge, claiming that he was not being misleading with his responses during the interview.

Early in the interview, Respondent was shown the DAS audit of his Department phone-use and asked about the license plate search of December 3. Respondent initially stated that he could not recall conducting the search. He did start to respond, "The only thing that comes to my mind..." but he was cut off by a PBA trustee and the interview moved on. One of the questioners provided additional information about the search: he showed Respondent documents he had opened, such as a police accident report, which included the name of the driver of the vehicle connected to that license plate. Respondent also was shown that he had conducted a separate query of that individual's name. Respondent continued to insist that he could not remember this specific search and he did not recognize the name that was uncovered, nor did he recall anyone having asked him to conduct the search. He stated, "I'm a hundred percent sure I don't recall." (Dept. Ex. 1A at 10-13)

When questioned during the interview whether anyone outside the Department had ever asked him to make a computer query, Respondent stated that in 2020 an individual named A.C. [REDACTED], a childhood friend who purchased cars at auction and then resold them, may have asked him to do a license plate check on a vehicle that Respondent was considering buying. It was possible that the December 3rd search was related to that car purchase, though Respondent could not say for certain that it was. The questioners suggested that since Respondent had only

conducted searches on a total of six license plates since 2017, they found it hard to believe that Respondent could not recall the details of the query of December 3, 2020. The interview was then paused at the request of defense counsel. (Dept. Ex. 1A at 14-20, 22-23)

After a 24-minute recess, Respondent clarified that the search he conducted on December 3, was not connected to his interest in purchasing a car. Rather, the search was done as a favor to A.C. [REDACTED], who asked him to run the plate and find out the name of the person to whom the car was registered. Respondent was unsure whether A.C. [REDACTED] had contacted him by phone call, text, or through WhatsApp. Respondent stated that he could not recall why A.C. [REDACTED] had asked him to do the search, though he thought it may have been related to A.C. [REDACTED]'s business of purchasing vehicles at auction. Respondent initially indicated he could not remember the precise information he provided to A.C. [REDACTED] from the search since it occurred so long ago, but then stated that he did provide the name of the driver, and that there was a summons and an accident report attached to the plate. He repeatedly insisted that he did not remember providing the driver's address to A.C. [REDACTED], though after being pressed on this point Respondent eventually acknowledged it was possible that he did. (Dept. Ex. 1A at 24-26, 29-40, 50-53, 76-77; Dept. Ex. 2A at 3-5)

There were some additional matters raised during the course of the interview. Respondent was questioned about being on the phone with an individual, V.M. [REDACTED], at the same time he was conducting the license plate search on December 3. Respondent stated that V.M. [REDACTED] was a contractor doing construction on his New Jersey house at the time, and he did not share any of the information from the search with V.M. [REDACTED]. When asked whether he received any benefit from A.C. [REDACTED] for doing the search, Respondent insisted that he did not. The questioners asked about an \$11,000 deposit into his bank account on December 11, eight days after the

license plate query. Respondent stated that the money came from his mother or sister, to be used toward the down payment of a New Jersey house he purchased that month, and had nothing to do with the license plate check.¹ (Dept. Ex. 1A at 43-45, 56-58)

At trial, Respondent testified that when he initially was asked about the computer search at his Department interview, he could not remember the details of the query, which had occurred 17 months earlier. Even though he had conducted searches on only six license plates in his career, Respondent was “under a lot of pressure” during the interview, and he could not recall this specific search, which is what he told his questioners. Respondent testified that when they provided more particulars about the search, his recollection was refreshed. At first he believed the search was in connection with a car he was interested in purchasing through A.C. [REDACTED] around that time. Respondent testified that after taking a break in the interview and having time to think it over, he realized the search had nothing to do with his car purchase. Rather, this was a separate query where he was doing a favor for his friend. Respondent testified that he does not recall seeing the address of the car owner during his search, and only remembers providing A.C. [REDACTED] with the name of the owner, but not the address. He also reiterated that the phone call he had with V.M. [REDACTED] while he was conducting the search was related to contract work on his New Jersey house, and had nothing to do with the computer query. (Tr. 132-41, 144-45, 161-72)

According to Respondent, he did not receive any compensation in exchange for conducting the license plate search. With respect to the \$1 1,000 deposited into his bank account later in December, 2020, Respondent testified that the money was given to him by his mother, toward the purchase of his house. Respondent explained that at the time of his official interview,

¹ Lieutenant McKenna testified that IAB did not uncover any financial records or other evidence undermining Respondent’s statement that the money was a gift from his family for the new house. (Tr. 97)

he could not remember precisely whether it was his mother or sister who gave him the money, but he looked into it again after the interview and recalled that the money came from his mother's savings. (Tr. 130-31, 172-75)

Section 304-10 of the Administrative Guide defines a misleading statement as one "that is intended to misdirect the fact-finder, and materially alter the narrative." Such statements include intentionally omitting material facts, or making repeated claims of "I do not remember" when a reasonable person under the circumstances would have recalled such facts. Statements may also be deemed misleading when an MOS alters their prior account after being confronted with independent evidence indicating an event did not occur as initially described.

Respondent maintains that he was not being intentionally misleading during the interview. He claims that early in the questioning, he could not recall the details of the December 3 license plate search, which he conducted 17 months prior to the interview. As the interview unfolded, he had more time to think about what had occurred, and gradually remembered more information about it, though he still could not recall every detail of the search.

After carefully considering the totality of the testimony and exhibits presented at trial, I reject Respondent's arguments as implausible and against the weight of the credible evidence. The search Respondent conducted on December 3, 2020, one of only six license plates he had run since 2017, was not the type of query one would easily forget, even 17 months later. By all indications, there was some urgency to this search, which was more extensive than others he had done: the car stop had occurred at 1802 hours, and by 1839, Respondent, who was on duty at the time, had already interrupted his work responsibilities to begin the search. Moreover, this was no ordinary license plate check, the kind that could readily be performed through an app such as CARFAX. Rather, Respondent opened multiple documents, including summonses and a police

accident report, and also did two separate queries of the registered owner of the vehicle once he learned his name from the accident report.

As such, I find that during the initial portion of his Department interview, Respondent was being deliberately misleading when he stated that he could not recall the search. Even after being shown several documents he had opened during the course of the query, Respondent continued to maintain that nothing about it “rang a bell.” He went so far as to state that he was “a hundred percent sure” that he did not recall the search. Under the circumstances, those answers were intended to misdirect the factfinders and were materially misleading.

Similarly, Respondent was intentionally misleading when he later suggested that the license plate search may have been in connection with a vehicle he was considering buying. This was a relatively innocuous explanation for the search, designed to minimize Respondent’s culpability. However, when the questioners indicated their skepticism about his answers, a 24-minute break ensued at the request of Respondent’s counsel, after which Respondent “clarified” that the search had nothing to do with his purchase of a car, and was instead done as a favor to an individual. I do not credit Respondent’s claim that the change in his account occurred merely because he had more time to think about the search and suddenly recalled more details. Rather, Respondent first came up with a story he knew to be untrue, then made a calculated decision to adjust his account after he was confronted with evidence that there was more to the search than he had initially suggested. Indeed, Respondent admitted at trial that at the time he purchased the vehicle to which he was referring, he did not run a check on the license plate through the DAS system. (Tr. 168-70) As such, there would have been no reason for him to believe that the query of December 3 had anything to do with his purchase of a vehicle. Once again, Respondent was intentionally misleading the factfinders.

Additionally, I find that Respondent was deliberately misleading when he repeatedly stated that he could not remember providing the DEA address connected with the car to the third party. Even though Lieutenant McKenna could not conclusively state that Respondent viewed the address during the computer search, based on the timing of events there is sufficient circumstantial evidence to support a finding that Respondent did learn the DEA address of the car's registered owner, and then shared that information with the third party. In the initial phone call following the car stop, the target of the narcotics investigation stated that he would have an intermediary reach out to an NYPD officer who would conduct the search. Lieutenant McKenna testified that the Department's audit revealed that Respondent was the only such officer to search that plate. Once he learned the name of the registered owner, Respondent took the time to conduct *two* separate computer searches of that individual, one with the date of birth added. The timing of Respondent's searches coincided precisely with the intercepted phone calls involving the target. During one of the follow-up calls, it was stated that *as per the contact in the NYPD*, the car was a DEA vehicle. It is apparent from this sequence of events that the address (DEA headquarters) was a pivotal part of this search, and it is more likely than not that Respondent, who did multiple queries and viewed several documents, discovered the DEA address and conveyed it to the third party. Under these circumstances, it is not plausible that Respondent could not recall this information during his Department interview. Rather, Respondent realized the significance of the address and attempted to distance himself from it during the course of the interview in order to minimize his culpability.

Respondent also was misleading regarding the phone call he made to V.M. [REDACTED]. When the questioners asked him about a phone call he placed from his personal phone to V.M. [REDACTED] at the same time he was conducting the license plate search, Respondent stated that V.M. [REDACTED] was

a contractor working on his house, the call had nothing to do with the computer search, and it was just a coincidence that he called V.M. at this time. Under the circumstances, I find this explanation to be implausible. This was not a situation where Respondent just happened to receive an incoming call from V.M. as he was conducting the search; it was *Respondent* who placed the call to V.M. As noted above, Respondent was, by all indications, in the midst of performing, with some urgency, an unauthorized computer search at someone's request. It is not realistic that he chose that precise moment to call his contractor about the house. Although there was no direct evidence connecting V.M. to the narcotics investigation, from the timing of the call and what was transpiring at the moment, it is more likely than not that the call Respondent placed was connected to the license plate search.

As such, the record has established, by a preponderance of the credible evidence, that Respondent made multiple materially misleading statements during his official Department interview on May 3, 2022. Accordingly, I find Respondent Guilty of Specification 3.

Additional charges

Under Case No. C-031931, Specification 2 charges that from April 21, 2021 through November 23, 2021, Respondent was not residing in New York City or one of the specified residence counties listed in Section 304-25 of the Administrative Guide. In a related charge, Specification 4 charges that on October 29, 2021, Respondent wrongfully indicated in Department records that he was residing in New York City during that time period when he was actually living in New Jersey.

Respondent pleaded guilty to each of these charges. Lieutenant McKenna testified that beginning in April 2021, IAB conducted surveillance on Respondent, and regularly observed him

residing at a New Jersey address. At the time, Respondent had a New York address listed with the Department as his residence. (Tr. 63) Respondent admitted to this misconduct, testifying that soon after purchasing a house in New Jersey in December 2020, he began residing there. Nevertheless, on October 29, 2021, he listed a New York City address with the Department, even though he was not living there. According to Respondent, he initially intended to reside in New York, but wound up spending approximately 90 percent of his time in New Jersey after the purchase. (Tr. 117-22, 145-47)

As such, based on the testimony of Lieutenant McKenna, and Respondent's admissions, I find Respondent Guilty of Specifications 2 and 4.

Specification 5 charges Respondent with failing to make proper Activity Log entries on three separate dates between December 3, 2020 and January 4, 2022. Respondent pleaded guilty to this charge, admitting that on each of these dates, he conducted computer searches of license plates without noting the searches in his Activity Log. (Tr. 64-65, 122-23, 147-48) Accordingly, I find Respondent Guilty of Specification 5.

Under Case No. C-031738, Respondent is charged with wrongfully engaging in off-duty employment without authorization from the Department pursuant to Section 332-04 of the Administrative Guide. That section states that a UMOS who wishes to engage in off-duty employment must first submit an application to their commanding officer.

Here, Lieutenant McKenna testified that Respondent's father owns a dairy farm in the Dominican Republic. On Instagram, Respondent is listed as the CEO of the farm, though there was no other indication that Respondent actually was the CEO. According to Lieutenant McKenna, Respondent acknowledged that there were times where he flew to the Dominican

Republic with money for the farm, and also helped out with farm purchases. Respondent did not at any time receive a salary. (Tr. 67-68, 98, 100-02)

Respondent testified that he was not engaged in employment with the farm, and was merely helping out his father on occasion, as do his siblings. Since his father does not have a business background, Respondent at times provided advice. Respondent also set up the Instagram account for his father, but the farm has no corporate structure, and Respondent does not act as an officer or CEO. Respondent has not received a salary or any compensation in connection with the farm. (Tr. 110-16, 175)

Based on this record, the Department Advocate has not met its burden of proving that Respondent wrongfully engaged in off-duty employment. The record is devoid of evidence that Respondent drew any salary from the farm, or that he received any monetary compensation. I find that his involvement with the farm did not constitute off-duty employment; rather, his assistance was more in the nature of occasionally using his business knowledge to help out his father with the farm.

The Department Advocate also argues that Respondent's involvement constituted an ownership interest in the farm, which requires authorization from the Department. However, Respondent is not charged with maintaining an "ownership interest," which has a separate definition in Section 332-04 of the Administrative Guide; Respondent is charged only with off-duty employment. In any event, for the reasons just stated, the credible evidence has not established that Respondent had an ownership interest in the farm, since he did not "exercise managerial control or responsibility over the firm." Again, his involvement can more accurately be described as informally assisting his father with issues that came up on the farm. Accordingly, I find Respondent Not Guilty of this charge.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department as a police officer on July 8, 2015, has been found Guilty of several charges, including divulging information from an unauthorized computer search, and then making misleading statements about the search at his official Department interview. The Department Advocate recommends a penalty of Termination, while counsel for Respondent argues for a lesser penalty that permits Respondent to remain on the job.

On the one hand, Respondent has no formal disciplinary record in his 10 years as a police officer. It also is worth noting that there was no direct evidence that at the time Respondent conducted the license plate search, he was aware that the information he shared would be used to assist individuals involved in illegal narcotics activity. Nevertheless, there is much that is disturbing in Respondent's conduct, both on the day he made the unauthorized computer search, and when he was later questioned about it at his official Department interview, and there must be appropriate accountability.

With respect to Specification 1, Respondent pleaded guilty to wrongfully using the Department's computer system in order to conduct an unauthorized search, and then divulging that information to a third party. The offense of "Computer Misuse with Dissemination of Information" is classified as a C-level command discipline in the Disciplinary Guidelines, which

has a maximum penalty of 20 days. Under Specification 3, Respondent has been found Guilty of intentionally making misleading statements. That offense carries a presumptive penalty of 30 days and dismissal probation, with an aggravated penalty of Termination. The acts of misconduct under these two counts are directly related, and will be considered together in fashioning an appropriate penalty.

While he was on duty, Respondent neglected his work obligations and used his Department phone in order to perform an unauthorized computer check. During the course of the search, he opened and viewed multiple documents, including a summons and a police accident report. After determining the name of the individual connected to the vehicle in question, Respondent conducted two additional searches of that name. Although the point was disputed, I infer from the evidence that Respondent also discovered the address of the individual, since the targets of the drug investigation learned the address at a time that directly coincided with Respondent's computer search, and they attributed that information to the NYPD source.

Making matters worse, Respondent then disseminated the information he retrieved to a third party. The information he divulged was used to alert targets of a narcotics investigation of the involvement of federal law enforcement, including the name of a particular agent. As a result of Respondent's egregious conduct, the investigation was compromised, including loss of the wiretap, and the agent was potentially placed in danger.

When questioned about this incident at an official Department interview, Respondent repeatedly attempted to minimize the seriousness of his actions with evasive answers about his conduct on December 3. Respondent intentionally attempted to mislead his questioners with several of his answers during the course of the interview, first claiming that he could not recall any details about the license plate search, then providing a fictitious explanation that the search

may have been connected to his purported efforts to purchase a car. He also was misleading in his answers about the information he retrieved and shared, particularly with respect to the address of the individual connected to the vehicle. Retrieving and sharing the address was a significant part of this incident, and Respondent's misleading answers on this topic were particularly problematic. At trial, Respondent doubled down on these misleading statements, continuing to maintain that he really did not recall the license plate search during the early portion of the interview, and that he still did not remember providing the address to the third party.

As the Disciplinary Guidelines make clear, the goal of any internal investigation is to get to the truth. By making multiple misleading statements during his official interview, Respondent deliberately compromised that mission. Moreover, the subject matter of the interview was extremely serious, making the materially misleading answers even more disturbing. Respondent was being questioned about a sequence of events that dangerously compromised a strike force investigation into illegal narcotics activity, and he repeatedly gave answers designed to cover up and minimize his participation in what unfolded. When his actions are viewed as a whole, Respondent has proven to be so untrustworthy that his continued employment with this Department is untenable, and the aggravated penalty of Termination is warranted. Accordingly, taking into account the facts and circumstances in this particular matter, I recommend that Respondent be DISMISSED from the New York City Police Department.

APPROVED

OCT 10 2025

JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,

Jeff S. Adler

Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER JENRRYIS FIALLO
TAX REGISTRY NO. 958588
DISCIPLINARY CASE NOS. C-031931 & C-031738

Respondent was appointed to the Department on July 8, 2015, having previously served as a School Safety Agent from October 29, 2013 through July 7, 2015. On his three most recent annual performance evaluations, he was twice rated "Exceeds Expectations" for 2021 and 2023, and was rated "Exceptional" for 2022. He has been awarded one medal for Excellent Police Duty.

Respondent has no formal disciplinary history. In connection with Case No. C-031931, he was placed on Level 1 Discipline Monitoring in June 2022; monitoring remains ongoing.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials